NO. COAP24-865

DISTRICT 10

NORTH CAROLINA COURT OF APPEALS

From Wake County
24CV039050-910

JEFFERSON GRIFFIN, Petitioner,

v.

NORTH CAROLINA BOARD OF ELECTIONS, Respondent.

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PETITION FOR A WRIT OF MANDAMUS

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Pursuant to Rules 2 and 22 of the Rules of Appellate Procedure, the Honorable Jefferson Griffin of the North Carolina Court of Appeals respectfully petitions this Court for a writ of mandamus, and alternatively for a suspension of the rules. Specifically, Judge Griffin seeks a writ of mandamus compelling the State Board of Elections to issue a final decision on his three categories of election protests pending before that Board by 5:00pm on 10 December 2024. The immediate issuance of a final decision is necessary so that any aggrieved party can seek judicial review of that decision and the winner for the open seat on our Supreme Court can be certified. Public trust in our electoral processes depends on both fair and efficient procedures to determine the outcome of our elections. By failing to give a timely decision, the State Board continues to undermine the public interest, just as it has done in its mismanagement of the 2024 general election.

STATEMENT OF THE FACTS

This matter involves the need for immediate action to determine the winner of the Supreme Court contest held in the 2024 general election.

On the evening of Election Day, Judge Griffin maintained a sizeable lead over his opponent, Justice Allison Riggs. However, as ballots continued to trickle in over the next week, Justice Riggs took the lead in the votes.

On 19 November 2024, Judge Griffin filed election protests in each of North Carolina's 100 counties. In total, Judge Griffin filed six categories of election protests. However, only three categories of protests are relevant here. Those three relevant categories are described briefly below. Judge Griffin's full brief to the Board on these issues is in the appendix to this petition. App. 3-37.

Incomplete Voter Registrations. Since 2004, the General Assembly has required someone registering to vote to provide his drivers license or last four digits of his social security number on his voter registration application. N.C. Sess. Law 2003-226, § 9 (amending N.C. Gen. Stat. § 163-82.4). However, until December 2023, the State Board of Elections failed to enforce this law. And even when the Board admitted its decades of lawlessness, it refused to cure the improper registrations, and only began requiring the information from new registrants. In the Supreme Court contest, over 60,000 people cast ballots, even though they had never provided the statutorily required information to become lawful voter registrants. Under state law, unless someone is lawfully registered to vote, he cannot vote. N.C. Const. art. VI, § 3(1); N.C. Gen. Stat. § 163-82.1(a).

Never Residents. Our state constitution limits voters for state offices to people who actually reside in North Carolina. N.C. Const. art. VI, § 2(1); Bouvier v. Porter, 386 N.C. 1, 4 n.2, 900 S.E.2d 838, 843 n.2 (2024) (explaining that "nonresidents" are "categorically ineligible to vote" for state offices). Nonetheless, the State Board allowed approximately 289 people to vote in the protested election who have never resided in North Carolina or anywhere else in the United States. These voters self-identified themselves as such, stating on a form "I am a U.S. citizen living outside the country, and I have never lived in the United States." Counting these ballots is unlawful.

No Photo ID. It's well known that photo identification is required for all voters, both those voting absentee ballots and those voting in person. N.C. Gen. Stat. § 163-230.1(a)(4), (b)(4), (e)(3), (f1) (absentee ballots); id. § 163-166.16(a) (in-person voting); N.C. Const. art. VI, §§ 2(4), 3(2) (same). Yet the State Board decided not to require photo identification for absentee ballots cast by voters who live overseas. State law, however, doesn't exempt overseas voters

from the photo-identification requirement. Thousands of such ballots were unlawfully cast in the election.

After Judge Griffin filed his protests, the State Board took over jurisdiction from the county boards for the three categories of protests just described. App. 1-2. The Board then entered a briefing schedule for these protests. App. 2. Per that schedule, Judge Griffin filed his brief on 27 November 2024, and Justice Riggs filed her brief on 6 December 2024. App. 3-37.

On 2 December 2024, Judge Griffin moved the Board to render its final decision on the protests on an expedited basis. App. 38-42. In his motion to expedite, Judge Griffin requested that the Board render its decision no later than Monday, 9 December 2024. App. 42.

On 5 December 2024, the Board informally notified the parties by email that it would hear oral arguments on 11 December 2024—two days after the date by which Judge Griffin requested a final decision. App. 43. The Board thus implicitly denied Judge Griffin's motion to expedite, preferring to proceed at its own pace. Judge Griffin's counsel responded to the email notice, waiving Judge Griffin's right to present argument to the Board, and reiterating his request for an expedited decision on the candidates' briefs by 9 December 2024. App. 43.

Immediately before filing this petition with this Court, Judge Griffin filed a petition for a writ of mandamus in Wake County Superior Court, seeking the same relief. App. 44-62. However, the superior court has not acted on the mandamus petition, nor is there any indication that the superior court can grant final writ relief in a sufficiently expeditious manner.

ISSUE PRESENTED

Should this Court order the State Board of Elections to immediately issue a final decision on the three categories of election protests before it?

REASONS WHY THE WRIT SHOULD ISSUE

Judge Griffin requests an order requiring the State Board of Elections to render a decision on his protests immediately.

This Court has the power to issue a writ of mandamus to control and supervise lower tribunals. In re T.H.T., 362 N.C. 446, 453, 665 S.E.2d 54, 59 (2008). Mandamus is appropriate when issued to command a lower tribunal to perform its duty in a timely manner. Id. at 453-54, 665 S.E.2d at 59. That's especially true when, as here, there is no other remedy provided by law. Id.

Rule 2 of the Appellate Rules points in the same direction. The Rules of Appellate Procedure may be suspended "in exceptional circumstances when injustice appears manifest to the court" or when necessary "to expedite decision in the public interest." State v. Hart, 361 N.C. 309, 315-16, 644 S.E.2d 201, 205 (2007) (cleaned up); N.C. R. App. P. 2; Summey v. Barker, 357 N.C. 492, 496, 586 S.E.2d 247, 249 (2003) (bypassing lower tribunal "to avoid additional delay"). This case easily checks those boxes.

A disputed election to our state's highest court is itself an exceptional circumstance of immense public interest. A speedy determination of that contest is not just important to the candidates, but is critical to the public's trust in the electoral process. Everyone has a strong interest in the fair and speedy determination of election results. See, e.g., Perloff v. Edington, 293 Ala. 277, 281, 302 So. 2d 92, 96 (1974) ("The public has an interest in the speedy determination of election contests . . . ."); Kinsey v. Garver, 91 N.E.2d 54, 56 (Ohio Com. Pl. 1950) ("an interest in the public exists in the speedy determination of election results"); Mansfield v. McShurley, 911 N.E.2d 581, 585 (Ind. Ct. App. 2009) ("The public has an interest in the speedy determination of controversies affecting elections . . . .").

And there is no good reason for the State Board's failure to issue a ruling on the election protests before it. Consider, for example, the disputed presidential election of 2000. The highest court in the land—the Supreme Court of the United States—was able to resolve a disputed election by December 12 after the 2000 general election. See Bush v. Gore, 531 U.S. 98 (2000). In just 35 days, the dispute was able to be reviewed by Florida's election board, a Florida trial court, the Florida Supreme Court, and the Supreme Court of the United States. At the State Board's current pace, the current election dispute won't even reach the court system by the time the United States Supreme Court had finally resolved the 2000 presidential election dispute. The foot-dragging is inexcusable.

When expediency is required, this Court has the power, under Appellate Rule 2, to require a lower tribunal to enter a decision by a date certain. Indeed, the Supreme Court unanimously did so in the political gerrymandering case in 2021. Harper v. Hall, 379 N.C. 656, 658, 865 S.E.2d 301, 303 (2021). On a Rule 2 motion, the Supreme Court ordered the trial court to issue a "provide a written ruling" by a date certain on whether electoral maps were unconstitutional as political gerrymanders. Id. That is the same relief requested here, as stated below.

SPECIFIC RELIEF SOUGHT

This Court need not let the public trust in the electoral process crumble further. Judge Griffin respectfully requests that the Court either issue a writ of mandamus directly to the State Board of Elections, ordering it to enter a final decision forthwith, or else order the superior court to issue that order to the Board. Either way, Judge Griffin seeks a final decision from the State Board on the three categories of election protests before it no later than 5:00pm on 10 December 2024.

In addition, Judge Griffin requests that this Court shorten the time for any party, including the Board, to respond to this petition. See N.C. R. App. P. 22(c) ("The court for good cause shown may shorten the time for filing a response [to a petition for a writ of mandamus]."); id. R 37(a) ("The court may shorten or extend the time for responding to any motion."). Judge Griffin requests that the response deadline be set for 24 hours after the filing of this petition, on Saturday, 7 December 2024, or as the Court otherwise deems appropriate.

Should any responding party raise any procedural objection to further delay resolution of this matter, Judge Griffin would ask that this Court suspend the Appellate Rules under Rule 2 and overrule any such objections.

This the 6th day of December, 2024.

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N.C. App. R. 33(b) Certification: I certify that the attorneys listed below have authorized me to list their names on this document as if they had personally signed.

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VERIFICATION OF COUNSEL

Pursuant to N.C. Gen. Stat. § 7A-98, counsel submits the following declaration: I declare under penalty of perjury under the laws of North Carolina that the statements of fact in the foregoing document are true and correct to the best of my knowledge. Executed on December 6, 2024.

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that a copy of the foregoing document was electronically filed and served this day by email, addressed as follows:

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This the 6th day of December, 2024.

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